ZVIKOMBORERO NHANDO
versus
CITY OF MUTARE
and
MASTER OF HIGH COURT N.O
and
SHERIFF OF HIGH COURT N.O

HIGH COURT OF Zimbabwe
MUZENDA J
MUTARE, 2 February 2026

OPPOSED APPLICATION

Mr *T. Nyakunu*, for the applicant
Mr *D Tandiri* for the 1st respondent
No appearance for 2nd and 3rsd respondents

MUZENDA J:

1. On 2 February 2026 after hearing counsel, I granted the following order in favour of first respondent:

"*IT IS ORDERED THAT*

1. *First respondent's points in limine on letters of administration, action of first respondent's nae and wrong citation of second and third respondents lack merit, they are all dismissed.*
2. *First respondent's point in limine on prescription succeeds, the cause of action arose in 2011 when the stand was repossessed and nothing was done by the applicant.*
3. *Stans 5999 ceased to exist in 2011.*
4. *Accordingly applicant's application is prescribed and the matter is therefore dismissed with costs.*"

On 25 March 2026, applicant's legal practitioners of record wrote to the Registrar asking for reasons. I will proceed to avail them.

2.0. **Background Facts**

2.1. On 19 November 2025 applicant approached this court seeking the following relief:

"2.1.1. *That stand No. 5999 Nyakamete, Mutare, be declared to form part of the Estate Late George Togara Nhando (DR 476/23).*

2.1.2. *The purported sub-division, reallocation and r occupation of Stand 5999 Nyakamete, Mutare by first respondent, be and is hereby declared null and void; and of no legal effect, unless done in compliance with the due process of law.*
2.1.3. *The first respondent be and are hereby directed to correct records of stand 5999, Nyakamete, Mutare as belonging to E/L George Togara Nhando, and to record them accordingly in its Municipal property registers.*
2.1.4 *The first respondent be and are hereby directed to ensure that any unlawful; occupants of stand 5999 are dealt with in accordance with the law and possession of the property is restored to the Estate, subject to verification by the Executor Dative.*

OR ALTERNATIVELY

2.1.5.0. *In the event that the stand No. 5999 Nyakamete, Mutare has already been sub-divided, occupied. reallocated, developed, or is otherwise no longer capable of restoration to the estate.*
2.1.5.1. *The first respondent be and is hereby ordered to allocate to the applicant an alternative residential stand of equal value and size to stand 5999, within Mutare City within 30 days of granting the order. The stand(s) shall be free form dispute, encumbrances, arrears or third-party claims.*
2.1.5.2 *Should the first respondent fail to comply with paragraph 5.1 above, the first respondent is hereby ordered to compensate the applicant the monetary value equivalent to stand 5999. The valuation shall be conducted by a registered property valuer agreed upon by the parties, or failing agreement, by one appointed by the Sheriff of the High Court.*
2.1.5.3. *Compensation shall be paid to the Estate within 30 days of the receipt of valuation report.*
2.1.6. *There shall be no order as to costs*."

3. The whole application is founded on an agreement of sale dated and signed by the first respondent on 5 January 2005 and counter-signed by the late George Togara Nhando (hereinafter referred to as the "now deceased" on 30 December 2005. The stand, 5999 Nyakamete, Mutare measured 67 994 square metres and the price was agreed on $1 155 048. The price was paid ibn full. Clause 15 of the agreement of sale required the purchaser to develop the stand within 6 months from the date the Surveyor General approves the survey diagrams and the purchaser was expected to complete developments on the stand within eighteen (18) months from the date of which the Surveyor-General approved the survey provided the purchaser may apply for extension of the eighteen months deadline.
4. The purchaser, the now deceased passed away in 2023. The current applicant was appointed executor dative. After applicant was appointed executor he discovered that stand 5999 was subdivided and the smaller sizes allocated to new beneficiaries and stand 5999 had disappeared from the municipal records. Applicant alleges that the repossession, sub-division, reallocation and subsequent developments wee all undertaken without the late

George Nhando's knowledge nor with applicant's. all the requirements needed by the first respondent had been fully me, hence applicant's prayer.

5.0 On 5 December 2025 first respondent filed its opposing papers and *inter alia* raised preliminary objections.

5.1. The first respondent alleged that applicant failed to attach his founding affidavit to show that he has the requisite legal capacity or authority to institute legal proceedings on behalf of the deceased estate. Applicant failed to annex to the application letters of administration.

5.2. The second objection related to the appellation; "Mutare City Council" t the first respondent, applicant ought to have used the name "City of Mutare" as it appears on the agreement of sale, as such applicant sued a non-existent entity.

5.3. The other objection raised by the first respondent was that second and third respondents were not properly cited and concluded that the entities cited do not exist.

5.4. The fourth objection was that applicant's claim has prescribed. The subject stand was repossessed by the first respondent sometime in 2011 and resold to three new beneficiaries who have since procured real rights over the sub-divisions and al three new purchasers fully developed their respective stands in 2011.

5.5. The first respondent also impugned vigorously the nature of both man relief sought as well as the alternative relief sought. To the first respondent both reliefs are incompetent, they are both not legally tenable. The three new stands borne out of stand 5999 can practically not be capable of being declared estate property for the stands are registered in third parties' names. The alternative relief sought point to one for breach of contract and invites specific performances or payment of damages. A court cannot compel first respondent to avail alternative stand to the estate and first respondent prays for the application to be struck off with costs.

6. on merits, first respondent contended that the first agreement of sale was entered on 24 August 1994. The late Mr Nhando failed to pay the purchase price. After re-negotiation another agreement of sale was finally entered in December 2005. The survey diagram was approved in June 2009 and the late Mr Nhando was advised and was expected to comply with clause 15 of the agreement of sale of 2005. The late Mr Nhando did not develop the stand, he could not submit building plans to the first respondent. First respondent

repossessed the stand and re-sold it to the highest bidders in 2011, new accounts for the new stands crafted out of stand 5999 Nyakamete where 11170, 10776 and 10777 were created. From 2011 the late Mr Nhando did not approach first respondent about the advertisement to repossess and to publicly sell to highest bidders till he passed on in 2023, twelve years later and to the first respondent the application lacks merit and it ought to be dismissed.

7.0. **Applicant's Submissions**

7.1. On *locus standi* applicant contended that he has the necessary authority to represent the late George Nhando as can be deduced under DR476/23 where he is the Executor Dative.

7.2. On the citation of first respondent, applicant submitted that there is no doubt that the citation alludes to the local authority which sold the stand to the applicant's late father. The same argument extended to the citation of second and third respondents.

7.3. The applicant did not agree that the application for a *declarator* has prescribed. He further states that his is not a claim for contractual damages but for a *declarator*. To applicant prescription does not un against a deceased estate prior to the appointment of an executor. To the applicant the cause of action arose when the executor discovered that the stand had been unlawfully removed from municipal records and directed the court to the case of *Idehen & Ors* v *Nhemwa N.O & Ors* HH 449-25 where the court held that declaratory claims in respect of immovable property are not ordinary "debts" susceptible to prescription. The applicant the allegation by the first respondent for non-joinder of current owners of stand extracted from stand 5999 is not fatal to the application.

7.4. The applicant moved the court to make a finding that he has met all the requirements of a declarator and that the order should be granted as prayed for. He cited authorities among them *Johnson* v *AFC* 1995 (1) ZLR 65. It is the submission by the applicant that his late father paid the purchase price in full but first respondent repossessed the stand without following due process and went o to cite cases dealing with *rei vindicatio* and rights of ownership and prayed that the application succeeds.

8.0. **First Respondent's Submissions**

8.1. The first respondent insisted with its points *in limine*. It added that the wrong citation of the first respondent goes to the root of the application and referred the court to the cases of *Marange Resources P/L* v *Core Mining & Minerals P/L (in liquidation) & Ors* SC 37/16 and *F. John* v *Delta Beverages* SC 40/17, it urged t court to make a finding that the application for a declarator was a nullity for a non-existent entity has been cited.

8.2. It was a further contention of the first respondent that applicant's failure to join the three new purchasers of the former stand 5999 was fatal, it directed the court to the case of *Tetrad Holdings Ltd & Ors* v *N.S.S.A & Ors* HH 938/15, yet al the three holders have interest which applicant seeks to acquire on behalf of the estate.

8.3. The first respondent went on to contend that the application has prescribed if one looks at s 15(d) of the Prescription Act [*Chapter 8*:*11*] and the repossession and reallocation in 2011. First respondent submitted that applicant had 3 years to act after the cause of action arose and referred the court to the case of *Mukahlera* v *Cler of Parliament & Ors* 2005 (2) ZLR 365(S).

8.4. It is the averment of the first respondent that no time was ownership of stand 5999 vested on the late Mr George Nhando. The late Mr Nhando was in breach of the terms of the 2005 agreement of sale and to the first respondent, assuming that the late Mr Nhando had not been served with a notice of cancellation that would not invalidate the cancelation of the agreement of sale and directed the court to the case of *Tenda Transport P/L* v *City of Mutare* HC 10836/03 and after al the late Mr *Nhando* was not vigilant. He was in breach of clause 15 of the agreement of sale.

9.0. **Disposition**

9.1. Although the points *in limine* raised by the first respondent seem to be sound in principle they are not capable of resolving the dispute between the litigants. If the application is struck off the roll, the applicant may go back, do necessary amendments and find his path back to court. As has been repeatedly stated by this court, where a point *in limine* is not capable of disposing the matter if it is upheld, that preliminary point ought to be dismissed. Among the points *in limine* raised by the first respondent one attracts the bee for the latter's attention and that is one for prescription. Frist respondent contended that during the lifetime

of Mr George Nhando in 2011 the City of Mutare advertised its intention to repossess stand 5999 and re-sell the portions. The late George Nhandi did not assert his rights and was free to file objections. He did not take action. The agreement of sale clause 15 required him to take steps to odevelo9p property after it has been surveyed and the surveyor diagram was approved in 2009 and the late Nhando was advised. Applicant in his papers dos not dispute this. He boldly alleges that first respondent did not follow due process in repossessing the stand. What is due process? What is clear from the parties' papers is that at the time applicant filed his papers for this application stand 5999 had been repossessed, reallocated to three individuals and titles. There was no stand 50999 open for allocation to the estate. That repossession and re-allocation occurred in 2011 and applicant's late father had up to 2015 latest to sue the first respondent.

9.2. The applicant went at length to speak of ownership, *rei vindicatio* etc. of stand 5999. The late George Nhando never owned stand 5999, he bought the rights and ownership remained in first respondent. Only after title had passed from the first respondent to the late Mr Nhando would one speak of ownership and *rei vindicatio*. Applicant had no legal foothold to speak of ownership, that is why in his papers he prayed for replacement and or damages. He was fully aware that ownership or title now lies in someone else. Computing the period from 2011 to 2023 the court is satisfied that the purchaser himself even in 2019, the 3-year prescription period provided by s 15(d) of the prescription Act had expired and he claim was prescribed. The case cited by the applicant is distinct since that case, *Idehen & Ors* (*supra*) relates to titled property. *In casu* what applicant was holding was an agreement of sale whose terms he had breached by failing to develop the property as required by the City Council. The applicant's argument of an estate claiming the declarator does not persuade the court because as already indicated hereinabove, during the deceased's own life he never took first respondent to task.

9.3. The preliminary objection by first respondent has merit and it goes to the root to applicant's application. It is therefore upheld and applicant's case is dismissed with costs.